

Court No. - 3

Case :- WRIT - C No. - 8016 of 2024

Petitioner :- Shiv Om Pandey

Respondent :- State Of U.P Thru. Prin. Secy. Energy Deptt.
Lko. And 2 Others

Counsel for Petitioner :- Hari Anuj Bahadur Sinha, Lal
Bahadur Pandey

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

1. Heard learned counsel for the Petitioner, learned Standing counsel for the respondent no.1 and Ms. Aparajita Bansal, learned counsel for the respondent nos.2 and 3.

2. This writ petition has been filed with the following main prayers:-

"(i). issue a writ, order or direction in the nature of certiorari thereby quashing the impugned demand notice dated 03.08.2024 issued to petitioner for recovery of Rs.4,34,633/- towards electricity fine on the basis of the electricity dues which have been assessed by the respondent no.3 on the basis of checking report dated 18.01.2023 of the petitioner's brother premises, contained in Annexure no.1 to the writ petition ;

(ii). issue a writ, order or direction in the nature of mandamus thereby commanding the opposite parties not to take any coercive steps against the petitioner in pursuance of the impugned demand notice dated 02.09.2024 issued to petitioner for recovery of Rs.4,34,633/- towards electricity fine."

3. It is the case of the petitioner that he had applied for electricity connection for his house in the year 2017. All of a sudden on 17.01.2023, the said connection was disconnected and it showed dues of Rs.19,381/- pending against the petitioner. The petitioner deposited the said amount on 25.01.2023 along with Rs.600/- as re-connection charges. However, again a letter dated 08.02.2023 was issued from the office of respondent no.3 relying upon the checking report dated 18.01.2023. It informed the petitioner that the petitioner was found indulging in the theft of electricity through low tension line by-passing the meter.

4. Learned counsel for the petitioner has submitted that the respondent no.3 asked for bribe which the petitioner did not give and therefore, his objections which he had filed against the show cause notice was not considered although they had been sent through registered post on 22.2.2023 and a final assessment order was passed on

23.1.2024. The impugned demand notice dated 03.08.2024 has been issued for Rs.4,34,633/- in violation of Clause 6.8 (b) (i) and Clause 8.1 (b) of The Electricity Supply Code, 2005. It has been submitted by learned counsel for the petitioner that Section 126 (3) of the Act of 2003 provides that the order of assessment should be passed within 30 days from the date of service of such provisional assessment order. In the case of petitioner, no final assessment order has been passed by the respondent no. 3 and only demand notice has been issued

5. Ms. Aparajita Bansal, appearing for respondent nos.2 and 3 on the basis of instructions states that final notice/assessment order was issued on 23.01.2024 and the objections sent by the petitioner against the provisional assessment order have not been received in the office of respondent no.3.

6. The writ petition is disposed of with a direction to the respondent no.3 to consider the objections allegedly sent by the petitioner through registered post on 22.02.2023 within a period of ten days' from the date a copy of the order is produced before him and then pass a final assessment order afresh. Such final assessment order shall be reasoned and speaking and shall be passed within two weeks of receipt of the copy of this order. For a period of four weeks, or till a decision is taken, by the respondent no.3, whichever is earlier, the impugned demand notice shall be kept in abeyance.

Order Date :- 18.9.2024

Pks